

25CHLC43351 25CHLC43351

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25CHLC43351 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Pool

& Electrical Products, LLC's Amended Motion to Strike Answer, or in the alternative, for Judgment on the Pleadings, is denied.

Order to Show Cause Re: Status of

the Legal Representation of Defendant All

Custom Pools, Inc. is scheduled for 10/01/2026 at 9:30 am in Department 26 in the Spring Street Courthouse. On that date, absent good cause, the Court will strike the Answer on its own motion pursuant to Code of Civil Procedure, section 436(b).

Analysis:

Plaintiff Pool & Electrical Products, LLC ("Plaintiff")

filed the instant action against Defendant All Custom Pools, Inc. ("Defendant") on September 2, 2025. On April 20, 2026, Defendant filed an Answer in propria persona. Plaintiff filed the instant Amended Motion to Strike Answer, or in the alternative, for Judgment on the Pleadings on April 22, 2026. The Motion was served on Defendant by overnight delivery on August 10, 2026. Plaintiff filed a Notice of Non-Opposition on August 24, 2026. No opposition has been filed to date.

Discussion

Motion to Strike Answer

The Motion to Strike Defendant's Answer is brought pursuant

to Code of Civil Procedure section 436 on the grounds that Defendant, despite being a corporation, was not represented by an attorney at the time the Answer was filed. Instead, the Answer is signed by "Eric Mariscal," who does not indicate that they are a licensed attorney. (Answer, filed 04/20/26, p. 1.)

Motions to strike in the Limited Civil Court may only challenge pleadings on the basis that "the damages or relief sought are not supported by the allegations of the complaint." (Code of Civ. Proc., § 92, subd. (d).) The instant Motion to Strike Answer does not pertain to whether the damages or relief sought are supported by the allegations, and therefore, cannot be raised in this Court.

That said, it is black letter law that a corporation cannot represent itself in court. (Clean Air Transport Systems v. San Mateo County Transit Dist. (1988) 198 Cal.App.3d 576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as separate from their owners, including partnerships and unincorporated associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at 578.) Defendant's Answer does not indicate that it was filed by a licensed attorney. Therefore, the Court finds Defendant filed the Answer without proper legal representation and that it cannot appear without an attorney going forward. The Court sets an order to show cause as indicated below. On the date set for hearing, absent good cause, the Court on its own motion will strike the Answer pursuant to Code of Civil Procedure, section 436(b), as not drawn in conformity with the laws of this state, a court rule, or an order of the court.

Motion for Judgment on the Pleadings

Plaintiff alternatively moves for judgment on the pleadings on the grounds that Defendant is a suspended corporation that cannot participate in litigation. The request for judgment on the pleadings is brought pursuant to Code of Civil Procedure section 438, subdivisions (c)(1)(A), (c)(2)(B), and (f)(1). Subdivision (c)(1)(B) permits judgment on the pleading against the defendant if "the answer does not state facts sufficient to constitute a defense to the complaint."

As Plaintiff points out, the standard for a motion for judgment on the pleadings is essentially the same as

that applicable to a general demurrer. That is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (Barker v. Hull (1987) 191 Cal.App.3d 221, 236.)

A statutory motion for judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must also be accompanied by a meet and confer declaration. (Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed].) Finally, a statutory motion may be granted with or without leave to file an amended pleading. (Code Civ. Proc., § 438, subd. (h)(1).)

The Motion is not supported by a meet and confer declaration, nor does it reference a meet and confer effort. Further, the Motion does not refer to any part of the Answer that demonstrates Defendant's status as a suspended corporation. (Motion, p. 5:17-27.) Instead, Plaintiff attaches extrinsic evidence that it contends is "a true and complete copy of the relevant web page published by the California Secretary of State" showing that on November 1, 2024, the California Franchise Tax Board suspended Defendant for failing to pay its taxes. (Motion, Exh. 1.) The Motion does not include any request for judicial notice of this document, nor explain propriety of judicial notice. The Court, therefore, cannot consider the document in ruling on the Motion for Judgment on the Pleadings. As Plaintiff points to no other basis for the Motion, the Court denies the request for judgment on the pleadings.

Conclusion

Plaintiff Pool

& Electrical Products, LLC's Amended Motion to Strike Answer, or in the alternative, for Judgment on the Pleadings, is denied.

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Custom Pools, Inc. is scheduled for 10/01/2026 at 9:30 am in Department 26 in the Spring Street Courthouse. On that date, absent good cause, the Court will strike the Answer on its own motion pursuant to Code of Civil Procedure, section 436(b).

Moving party to give notice.